

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SERGIO GUTIERREZ BARAJAS,

Petitioner

VS.

SAFYANY SOP,

Respondent

) Case Number: FMS-23-387473

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
CONDUCT ORDERS, SANCTIONS, REDUCE ROFR, MUTUAL WRITTEN CONSENT

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9AM on 6/4/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Sergio Gutierrez Barajas (Father) and Safyany Sop (Mother) have one minor child together, Djamilah (DOB 9/21/2021, age 4). The parties have joint legal and joint physical custody of Djamilah. Father has in person parenting time and phone and video calls as set forth in a Findings and Order After Hearing filed 5/7/2025. His in person parenting time includes a holiday and visitation schedule as well as the following regular, alternating schedule: Week A, from Wednesday at 9:15am to Saturday at 9:15am; and Week B, from Wednesday at 12:30pm to Sunday at 5pm.
- 2) On 3/9/2026, Mother filed a request to change the parenting time schedule starting this fall, when Djamilah starts T-K. She believes it would be in Djamila's best interest to be with Mother during

1 the school week and with Father on alternating weekends and every Wednesday for dinner, and
2 for the parties to revert back to the current Week A/Week B schedule for the summer months. She
3 states the current schedule will not work because Father is not committed to Djamilah's school
4 attendance. Mother also sets forth various other concerns she has regarding Father's parenting
5 time and states she is the parent better able to care for Djamilah's needs. She requests various
6 other orders including conduct and communication orders.

7 3) Father has filed a responsive declaration in which he seeks to keep the current schedule. He states
8 that the attendance records show he has generally dropped off and picked up Djamilah on time,
9 "with only a few instances of early pickup." He states he will be moving to a place in Oakland
10 that is only two blocks from Djamilah's TK school and that he is committed to ensuring her
11 regular attendance. He states Djamilah is thriving with the current schedule. Father agrees with
12 some of Mother's requests for conduct and communication orders (e.g., nondisparagement,
13 Talking Parents app, although he prefers the free version of any app) and is not in agreement with
14 others (e.g., 2-hour right of first refusal).

15 4) Both parties have filed supplemental declarations, which the Court has reviewed.

16 **B. Findings and Orders**

17 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
18 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
19 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
20 child is the United States.

21 2) **The parties are ordered to appear in person or via Zoom video at 9AM on 6/4/2026 in**
22 **Department 404.**
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